

25STCV07002 25STCV07002

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-10

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Case Number: 25STCV07002 Hearing Date: August 10, 2026 Dept: 512

HEARING DATE: Mon., August 10, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Marroquin

v. General Motors, LLC COMP

FILED: 03-12-25

CASE NUMBER: 25STCV07002 FAC FILED: 12-02-25

NOTICE: OK

PROCEEDINGS: MOTION

TO STAY PROCEEDINGS

MOVING PARTY: Plaintiff

Sandra Licardie Marroquin

RESP. PARTY: Defendant General Motors, LLC

MOTION TO STAY PROCEEDINGS

TENTATIVE RULING:

Plaintiff Sandra Licardie

Marroquin's Motion to Stay Proceedings is DENIED. Moving party is to give notice.

Defendant General Motors, LLC's

Ex Parte Application to Continue Trial, or Alternatively, For Leave to Have

Defendant's Motion for Summary Judgment Heard Within #0 days of the Trial Date is GRANTED IN PART. The Court finds there is good cause to hear the Motion for Summary Judgment within 30 days of the trial date. Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 28, 2026 ☐

Late ☐ None

REPLY: None

filed as of August 6, 2026 ☐ Late ☒

None

ANALYSIS:

I.

Background

On March 12, 2025, Plaintiff Sandra Licardie Marroquin ("Plaintiff") filed a Complaint for Statutory Damages against Defendant General Motors, LLC ("Defendant") and Does 1-10.

On December 2, 2025, Plaintiff filed a First Amended Complaint ("FAC").

On February 27, 2026, Defendant filed an Answer.

On June 23, 2026, Plaintiff filed the instant Motion to Stay Proceedings (the "Motion").

On July
28, 2026, Defendant filed an Opposition.

No Reply
has been filed.

II.
Legal
Standard & Discussion

Plaintiff moves the Court to stay the
proceedings pursuant to the Court's inherent powers to allow the Second
District Court of Appeal to rule on the pending appeal in Price v. General
Motors (Case No. 25STCV07259). Plaintiff states Price "will decide a
novel legal issue that is implicated in this case: whether a manufacturer's
post-filing election into the Song-Beverly Act's new procedural regime can
retroactively time-bar a complaint that was already on file when the new
statutes of repose and limitations took effect." (Motion, p. 3.)

In Opposition, Defendant requests the
Court deny the Motion for failure to comply with California Rules of Court,
rule 3.1306; failure to establish the balance of equities favors a stay;
improper purpose; and unfair prejudice to Defendant. (Opp., pp. 1-6.)

Code of Civil Procedure section 187
states "[w]hen jurisdiction is, by the Constitution or this Code, or by any
other statute, conferred on a Court or judicial officer, all the means
necessary to carry it into effect are also given; and in the exercise of this
jurisdiction, if the course of proceeding be not specifically pointed out by
this Code or the statute, any suitable process or mode of proceeding may be
adopted which may appear most conformable to the spirit of this Code."

"Trial courts generally have the
inherent power to stay proceedings in the interests of justice and to promote
judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33
Cal.App.4th 1484, 1489.)

Here, the
Court does not find that staying proceedings in the instant action to allow an

appellate decision to be issued in a separate, unrelated, unconsolidated matter furthers the interests of justice or promotes judicial efficiency. (See *ibid.*)

Quite the opposite, the Court finds that the judiciary would suffer and judicial efficiency would be stymied if trial courts were to stay cases pending resolution of separate, unrelated appeals. The Court acknowledges that other circumstances may warrant granting a stay pending an appellate decision – for instance, a stay pending direct appeal in the same action, or a stay pending an appeal in a related or consolidated action. However, these circumstances are not present in the instant action. While Plaintiff highlights the similar facts and/or issues in Price and the instant matter, Plaintiff fails to provide any other specific legal authority permitting the Court to grant the stay requested in the instant circumstances.

To the

extent the outcome of Price impacts the instant matter, that circumstance can be addressed if or when the appellate opinion is issued and the parties elect to proceed as they deem necessary and appropriate at that point in time.

Thus,

the Motion is DENIED.

III.

Conclusion

& Order

For the foregoing reasons,

Plaintiff Sandra Licardie Marroquin's Motion to Stay Proceedings is DENIED. Moving party is ordered to give notice.

Defendant General Motors,

LLC's Ex Parte Application to Continue Trial, or Alternatively, For Leave to Have Defendant's Motion for Summary Judgment Heard Within #0 days of the Trial Date is GRANTED IN PART. The Court finds there is good cause to hear the Motion for Summary Judgment within 30 days of the trial date. Moving party is ordered to give notice.